

**INDUSTRIAL AND ECONOMIC DEVELOPMENT SERVICES AGREEMENT
BETWEEN THE CITY OF CHEYENNE AND THE CHEYENNE/LARAMIE
COUNTY CORPORATION FOR ECONOMIC DEVELOPMENT**

1. **Parties.** The parties to this Agreement are the City of Cheyenne, a municipality duly organized and existing under the laws of the State of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereafter ("City"), and the Cheyenne/Laramie County Corporation for Economic Development, whose address is 121 West 15th Street, Suite 304, Cheyenne, Wyoming 82001, hereafter ("LEADS").
2. **Purpose of Agreement.** The purpose of this Agreement is to authorize LEADS to promote and take advantage of marketing opportunities to advertise the City's resources and to enhance the industrial development and economic viability of the City of Cheyenne.
3. **Term.** This Agreement is effective when all parties have executed it and all approvals have been granted. The term of this Agreement shall be from July 1, 2013, through June 30, 2014. Upon mutual written agreement of the parties, this Agreement may be extended for three additional one year periods.
4. **Payment.** The City agrees to pay LEADS for industrial and economic development services in the amount of Fifty Thousand Dollars (\$50,000.00). Payment will be made in a lump sum on or before December 31, 2013. The City's obligation to make payment to LEADS under this Agreement is subject to the appropriation of funds for this purpose through the City's budget approval process.
5. **LEADS Responsibilities.** LEADS will:
 - a. Encourage industrial and economic development in the City of Cheyenne through activities designed to increase infrastructure and basic employment opportunities, and to enhance the City's quality of life by attracting and retaining organizations compatible with the City of Cheyenne's environment.
 - b. Promote and take advantage of marketing opportunities to enhance the industrial development and economic viability of the City of Cheyenne.
 - c. Maintain generally accepted accounting procedures and practices, and to maintain books, records, documents and other evidence to sufficiently and properly reflect all transactions of any nature relating to this Agreement. Such books, records, documents and other evidence shall be made available upon written request of the City for inspection at the Cheyenne LEADS office.
 - d. Provide an annual written report of the uses made of funds received under this Agreement. The report will be provided to the Mayor or his designee no less than ninety (90) days before the end of the term of this Agreement.

6. **General Provisions.**

a. Amendments. Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.

b. Applicable Law. The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

c. Compliance with Laws. LEADS shall keep informed of and comply with all applicable federal, state and local laws and regulations in the performance of this Agreement.

d. Entirety of Agreement. This Agreement consisting of three pages represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.

e. Indemnification. LEADS shall release, indemnify and hold harmless the City of Cheyenne and their officers, agents, employees, successors and assigns from any cause of action, or claims or demands arising out of LEADS' performance under this Agreement.

f. Independent Contractor. LEADS shall function as an independent contractor for the purposes of this Agreement. LEADS shall assume sole responsibility for any debts or liabilities that may be incurred by LEADS. Nothing in this Agreement shall be interpreted as authorizing LEADS or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.

g. Notice. All notices arising out of or from the provisions of this Agreement shall be in writing and given to the parties either by regular mail or delivery in person.

h. Nondiscrimination. LEADS shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, and the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.* LEADS shall assure that no person is discriminated against based on the grounds of age, race, sex, creed, color, national origin, ancestry, qualified disability, or pregnancy in connection with the performance of this Agreement.

i. Prior Approval. This Agreement shall not be binding upon either party, no services shall be performed under the terms of this Agreement nor shall payment be made until this Agreement has been reduced to writing and approved by all necessary authorities.

j. Governmental Immunity. The City of Cheyenne specifically retains all immunities and defenses available to it as a governmental entity pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Designation of venue, choice of law, enforcement action, and similar provisions should not be construed as a waiver of governmental immunity.

k. Termination. The City may terminate this Agreement for cause immediately without liability in the event LEADS fails to perform. Either the City or LEADS may terminate this Agreement with cause upon fifteen (15) days written notice; provided, however, that if LEADS terminates the Agreement prior to the expiration of the Agreement, it will return all unexpended funds.

7. Signatures. In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

The Agreement date is the date of the last signature affixed to this page.

CITY OF CHEYENNE, WYOMING

Date: _____

By: _____

Richard L. Kaysen, Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk

CHEYENNE/LARAMIE COUNTY CORPORATION
FOR ECONOMIC DEVELOPMENT

Date: _____

By: _____

Randy Bruns, President

Attest:

Secretary